

PR 9-08

PERMANENT RESOLUTION NO. 90-08

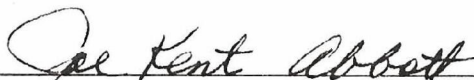
**CHICKASAW TRIBAL LEGISLATURE
Amendment to Tribal Law 6-009**

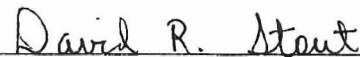
- WHEREAS,** the Chickasaw Tribal Legislature is responsible for making decisions pertaining to the acquisition, leasing, disposition and management of tribal real property subject to federal law, and for enacting rules and regulations pertaining to the Chickasaw Nation, and
- WHEREAS,** Governor Bill Anoatubby, chief executive officer of the Chickasaw Nation, or his designee, is authorized to enter into, negotiate, amend and sign grants, contracts and other agreements on behalf of the Chickasaw Nation, and
- WHEREAS,** the Chickasaw Tribal Legislature, in adopting Tribal Law 6-009, created and empowered the Chickasaw Nation Industrial Development Commission with certain powers and authorities, and
- WHEREAS,** it has become desirable to amend that tribal law so that the commission will be eligible for tax exemption under the United States Internal Revenue Service's criteria for political subdivisions,
- NOW, THEREFORE, BE IT RESOLVED,** that the Chickasaw Tribal Legislature hereby amends Tribal Law 6-009, in the following manner: Amend Section 14 by inserting the following after part (E):

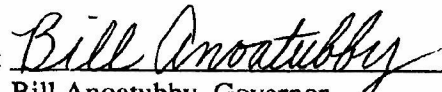
(F) The commission shall have the power to condemn and to take private property for the public use of the Chickasaw Nation by providing just compensation to the owner of the property which is taken. In the exercise of this power, known as eminent domain, the commission shall develop a procedure to condemn and to establish just compensation to owners which shall be approved by the Judicial Department of the Chickasaw Nation tribal government.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Sulphur, Oklahoma on July 20, 1990, by a vote of 7 ayes, 0 nays and 6 abstentions.

PASSED


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur: 
Bill Anoatubby, Governor
The Chickasaw Nation

Date: JUL 23 1990